

U.P. Stamp (Amendment) Rules, 2017

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State of Uttar Pradesh - Act

U.P. Stamp (Amendment) Rules, 2017

UTTAR PRADESH

India

U.P. Stamp (Amendment) Rules, 2017

Rule U-P-STAMP-AMENDMENT-RULES-2017 of 2017

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U.P. Stamp (Amendment) Rules, 2017

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No. 12/2017/1385/94-S/R.-2-2017-700(265)-2016, dated December 20, 2017, published in the U.P. Gazette, Extraordinary, Part 4, Section (Kha), dated 20th December, 2017, p. 3. - In exercise of the powers under Section 74 of the Indian Stamp Act, 1899 (Act II of 1899) as amended, in its application to Uttar Pradesh, read with Section 21 of the General Clauses Act, 1897 (Act 10 of 1897), the Governor, is pleased to make, the following rules with a view to amending the Uttar Pradesh Stamp Rules, 1942 -

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Stamp (Amendment) Rules, 2017.

(2)

They shall come into force with effect from the date of their publication in the Gazette.

2.

Amendment of Rule 218.

- In the Uttar Pradesh Stamp Rules, 1942, for Rule 218, the following rule shall be substituted, namely -

"218. The refund or renewal of the value of spoiled stamps shall be made in accordance with Section 49 to 53, Chapter V of the Stamp Act, 1899. The application for the refund or renewal should be presented before the Assistant Commissioner, Stamp. Assistant Commissioner, Stamp shall dispose the case of refund or renewal of spoiled or useless or such stamps which are not required, provided that the application for refund is presented within two years from the date of purchase of the stamp.

However after the expiry of two years but within a period of four years from the date of purchase of such stamp, the approval for renewal of refund may be granted by the Deputy Commissioner Stamp.

However after the expiry' of four years within eight years the renewal or refund may be done after the approval of the Government.

There shall be no renewal or refund after the period of eight years from the date of purchase of the stamps:

Provided further that no application shall be accepted after the period of one year from the date of amendment in this rule or its publication in government notification in cases as mentioned in above rule, where the period of two years has expired or where the stamp is. purchased two years ago and after the expiry of two years the action was to be taken By the State Government regarding refund of the value of such stamp or the stamps which are not required.".

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